

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

July 16, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Aguilar v. TYR Sport, Inc. 2021-01188780	Off calendar.
2	Andrade v. Harbor Truck Bodies, Inc. 2023-01367894	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$450,000 class action and PAGA

		settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$2,500.00 for enhancement award to plaintiff (not to exceed); \$135,000.00 for attorneys' fees (not to exceed); \$10,000.00 for attorneys' costs (not to exceed); \$8,600.00 for settlement administration fees (not to exceed); and \$20,000.00 total PAGA penalties (\$15,000.00 to LWDA). Plaintiff is ordered to file and serve <u>by July 23, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto; and notice packet (in English and Spanish)). The final approval hearing is scheduled for <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. No earlier hearing date is available for this motion.
3	Cruz v. Pacific Life Insurance Company 2025-01517146	<u>Defendant Pacific Life Insurance Company's Motion for Attorneys' Fees and Costs</u> Defendant Pacific Life Insurance Company moves for an order pursuant to Civil Procedure Code section 128.5 awarding it \$31,797.00 in attorneys' fees and costs. For the following reasons, defendant's motion is denied. Civil Procedure Code section 128.5 states, in relevant part: "(a) A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. . . . "(b) For purposes of this section: "(1) 'Actions or tactics' include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading. . . . "(2) 'Frivolous' means totally and completely without merit or for the sole purpose of harassing an opposing party. . . . "(f) Sanctions ordered pursuant to this section shall be ordered pursuant to the following conditions and procedures: "(1) If, after notice and a reasonable opportunity to respond, the court issues an order pursuant to subdivision (a), the court may,